



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 5, 2025

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202310526 (Incident Date: September 8, 2023) regarding Police Officer Mirza Baig, Tax No. 971328 (PODS Case No. C-033060), and Police Officer James Fowler, Tax No. 967512 (PODS Case No. C-033063)

Dear Mr. Darche:

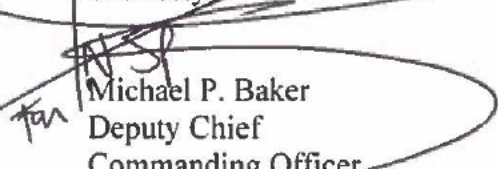
The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matters involving Police Officers Mirza Baig and James Fowler and has determined that their actions do not warrant disciplinary action.

After reviewing the evidence in this matter, the Police Commissioner finds Officer Baig's use of force to be within guidelines and not to be actionable misconduct. Officer Baig's use of hand strikes to gain compliance of an actively resisting suspect was reasonable under the circumstances.

The Police Commissioner also finds Officer Fowler's actions to be within guidelines. Officer Fowler was escorting an aggressive, handcuffed prisoner to a police vehicle for transport when the prisoner appeared to twist himself free from Officer Fowler's control. Officer Fowler then pulled the prisoner away from other officers on scene and unintentionally caused the prisoner to fall to the ground and himself to fall to one knee. Considering the totality of the circumstances, Officer Fowler's actions were reasonable.

Based on the foregoing, the Police Commissioner directs that Police Officer Baig and Police Officer Fowler receive no disciplinary action for their allegations of improper use of physical force.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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